Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

<u>Counsel and Parties Please Note:</u>
Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.

Date: June 10, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, <u>after contacting opposing party/counsel</u>. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion <u>only upon stipulation of all affected parties.</u>

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Gazca vs. Kia America, Inc.	**TENTATIVE RULING:** **<u>Order to Show Cause re Change of Venue.</u>** The Court set this order to show cause hearing regarding the proper venue and potential transfer of this action brought under the Song-Beverly Act. Plaintiffs, relying on *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, contends venue in Orange County is proper based on the general venue provisions set forth in Code of Civil Procedure sections 395.5. **<u>Statement of Law</u>** Pursuant to Code of Civil Procedure section 395(a), "the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." Additionally, "if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless

		there is a special contract in writing to the contrary." (Code Civ. Proc., §395(a).) Similarly, Section 395.5 provides that a corporation "may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases." In *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1156, the court explained: "Section 395, subdivision (b) provides that a consumer action "arising from an offer or provision of goods [or] services" is proper "where the buyer or lessee in fact signed the contract, where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the action." However, the trial court failed to cite, and we have been unable to locate any authority making the venue provisions of section 395, subdivision (b) mandatory in Song-Beverly Act cases. Because Code of Civil Procedure section 395, subdivision (b) is not mandatory, generally applicable venue rules apply. Code of Civil Procedure section 395.5 specifies where venue may be had in a case, such as this one, where a party to the action is a corporation: "A corporation may be sued in the county where a contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases." A foreign corporation may obtain a county residence under Corporations Code section 2105, subdivision (a)(4), which allows it to designate its principal office within the state, thus granting a county of residence for venue purposes. Here, FCA is a foreign corporation with its principal place of business in Newport Beach, California. Thus, pursuant to , venue was proper either in Fresno County, where the contract was made and the alleged breach occurred, or in Orange County, where FCA maintains its principal place of business in California." Plaintiffs argues that venue is proper in Orange County because Defendant has repair centers in Orange County and because Defendant's principal place of business is Orange County. However, under the facts of this case, as currently set forth in the pleadings, and under *Tidrick*, these arguments must fail.

		First, there is nothing in *Tidrick* that indicates venue in Song-Beverly Act cases is proper in any county where Defendant maintains a repair center. Furthermore, the Complaint in this action does not allege that Plaintiff attempted to have the vehicle repaired at any of Defendant's repair centers located in Orange County. In fact, the only repair facility mentioned in the Complaint is "Valley Hi Kia in Victorville, California." (ROA #2) Second, the Complaint does not allege, and Plaintiff has not established, that Orange County is Defendant's principal place of business. In *Tidrick*, the court took judicial notice of Statements of Information filed by Defendant FCA showing the location of its principal place of business in Orange County. (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, fn.3) No such request for judicial notice has been filed in this matter, and the court has not been presented with any Statements of Information filed by Defendant. **<u>Order to Transfer Venue</u>** The court, having considered the above legal authority, the operative Complaint, and any declarations filed in response to the setting of this hearing, finds that venue is not proper in Orange County. The court orders this case transferred to the county where the contract was made or is to be performed, or where the obligation or liability arose, or the breach occurred; or the county where the principal place of business of such corporation is situated. From the Complaint, it appears that county is San Bernardino County. Thus, this matter is ordered transferred to the San Bernardino County Superior Court, Civil Division of the Victorville District, 14455 Civic Drive, Victorville, CA 92392. Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of $50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. The court sets a status conference regarding the transfer of this action for Tuesday, November 10, 2026, at 9:00 a.m., in Department N16. If the transfer is completed prior to that date, no appearances are

		necessary, and the status conference will go off calendar. If the transfer has not been completed, however, then all counsel are ordered to appear at the status conference, at which time the court may dismiss the action without prejudice pursuant to CCP § 396a(a). Plaintiff to give notice.
2	Williams vs. General Motors, LLC	**TENTATIVE RULING:** **<u>Order to Show Cause re Change of Venue.</u>** The Court set this order to show cause hearing regarding the proper venue and potential transfer of this action brought under the Song-Beverly Act. As part of the Court's OSC Order, the Court invited counsel to file a written response that included the sales/lease agreement for the vehicle at issue. Neither plaintiff nor defendant filed anything in response to the OSC. **<u>Statement of Law</u>** Pursuant to Code of Civil Procedure section 395(a), "the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." Additionally, "if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." (Code Civ. Proc., §395(a).) Similarly, Section 395.5 provides that a corporation "may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases." In *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5^{th} 1147, 1156, the court explained: "Section 395, subdivision (b) provides that a consumer action "arising from an offer or provision of goods [or] services" is proper "where the buyer or lessee in fact signed the contract, where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the